

2018 P L C (C.S.) 12

[Lahore High Court]

Before Ayesha A. Malik and Jawad Hassan, JJ

PARKS AND HORTICULTURE AUTHORITY

Versus

MUHAMMAD SALEEM

I.C.A. No.99353 of 2017, decided on 2nd November, 2017.

(a) Civil service---

---Recruitment---Advertisement---Doctrine of "substantial compliance" to terms of recruitment advertisement---Appellant Parks and Horticulture Authority impugned order whereby Constitutional petition of the respondent was allowed, and the said Authority was directed to consider application of respondent for a post, despite respondent not attaching his photographs in his application as required by the advertisement---Validity---Where there was no apparent mala fide on the part of respondent, and his right of livelihood was involved, doctrine of substantial compliance was attracted, which was a legal principle stating that if a good faith attempt was made to perform requirements of an agreement, even if the same did not meet the terms or statutory requirements, performance would still be considered complete if essential purpose was accomplished---Appellant authority could have easily asked respondent to provide the said photographs, and no such leniency was shown---No illegality therefore existed in the impugned order---Intra-court appeal was dismissed, in circumstances.

Dr. Akhtar Hassan Khan and others v. Federation of Pakistan and others 2012 SCMR 455 and Global Textile Mills Ltd. v. Superintendent of Central Excise Circle II 1993 SCMR 900 rel.

(b) Substantial compliance, doctrine of---

---Scope.

Dr. Akhtar Hassan Khan and others v. Federation of Pakistan and others 2012 SCMR 455 and Global Textile Mills Ltd. v. Superintendent of Central Excise Circle II 1993 SCMR 900 rel.

Waqar A. Sheikh for Appellants.

ORDER

JAWAD HASSAN, J.--- Through this Intra Court Appeal, filed under Section 3 of the Law Reforms Ordinance, 1972, the Appellants have called in question the validity of order dated 26.09.2017 passed by the learned Single Judge whereby he allowed the petition of the

Respondent No.1.

2. The main grievance of the Appellants is that due to incomplete application form for the post of Mali, the Respondent No.1 was not shortlisted but the learned Single Judge has failed to appreciate this fact while allowing the writ petition of the Respondent No.1.

3. Learned counsel for the Appellant submitted that the impugned order is against law and facts; that the learned Single Judge has failed to appreciate the fact that it was specifically mentioned in the advertisement that the incomplete forms will not be considered; that this fact has been ignored that the writ petition involved the factual controversy which could not be adjudicated upon through constitutional petition; that the incomplete form does not create any vested right in favour of the Respondent No. 1.

4. Arguments heard, record perused.

5. From the perusal of record it reveals that admittedly the Respondent No.1 is the son of the retired employee of the Appellants who retired on 30.09.2013. Allegedly, in pursuance of the advertisement dated 04.05.2015 the Respondent No.1, firstly approached the Appellants for submission of application but he was advised by the Appellants' Office to send the same through TCS. In pursuance of which he submitted the said application along with all the documents through TCS but his application was rejected by the Appellants alleging that the same was incomplete. The learned Single Judge in the impugned order has observed that undeniably, the Respondent No.1 filed application within time, but same was not considered merely on the ground that photographs were not attached, which fact has been denied by the Respondent No.1. The Appellants could have asked the Respondent No.1 to provide photographs, but no such leniency was shown. Even otherwise, in the given circumstances, where there is no apparent mala fide on the part of the Respondent No.1 and his right of livelihood is involved, doctrine of substantial compliance is attracted. The Doctrine of substantial compliance/ performance is a legal principle which states that if a good faith attempt is made to perform the requirements of the agreement even if it does not precisely meet the terms of the agreement or statutory requirements, the performance will still be considered complete if the essential purpose is accomplished. In the impugned order the learned Single Judge has fortified his view by citing judgments of the Hon'ble Supreme Court of Pakistan i.e. Dr. Akhtar Hassan Khan and others v. Federation of Pakistan and others (2012 SCMR 455) and Global Textile Mills Ltd. v. Superintendent of Central Excise Circle II (1993 SCMR 900).

6. While advertizing to the second objection raised by the Appellants in the report and parawise comments that it was not written on the application of the Respondent No.1 that he is applying against employees' children quota, in this regard we agree with the findings of the learned Single Judge who in paragraph 7 of the impugned order observed that it has been specifically mentioned in the Respondent No.1's application that he is son of a retired employee and has also brought on record order dated 20.09.2012 showing that his father was retired as Head Mali from the Appellants Department on 30.09.2013. There appears to be no apparent justification for not considering the Respondent No.1 under 20% employees' children quota, reserved for the children of ex-employees. The learned counsel for the Appellants has failed to point out any illegality or perversity in the impugned order which warrants interference by us.

We therefore, fully agree with the finding of the learned Single Judge who allowed the petition of the Respondent No.1. In view of above circumstances, we see no illegality or jurisdictional error in the impugned order which has been passed in line with the dictates of law.

7. Resultantly, the instant Appeal is devoid of any merit and is accordingly dismissed in limine

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Appeal dismissed.